

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

Index #
Date of filing:

-----X
BRANDON K. BROWN, DONNELL LEDBETTER,
and JIMAR COLTER,

Plaintiffs designate Queens
County as the place of trial

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JASON QUINTANILLA- Shield # 6123, POLICE
OFFICER MICHAEL ZERBO-Shield # 18014, and
JOHN AND JANE DOES-Police Officers as yet
unidentified,

SUMMONS

Basis of the venue is Locus of
Occurrence at
229-15 Merrick Boulevard
Springfield, New York 11413

County of Queens

Defendants.

-----X
TO THE ABOVE NAMED DEFENDANT:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in the case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded herein.

Defendant's address:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Plaintiff's attorneys:

RUBENSTEIN & RYNECKI, ESQS.
26 Court Street, Suite 1200
Brooklyn, New York 11242
(718)522-1020

POLICE OFFICER JASON QUINTANILLA-
Shield # 6123
Tax ID # 959103
c/o New York City Police Department- 105th
Precinct
92-08 222nd Street
Queens, New York 11428

POLICE OFFICER MICHAEL ZERBO-Shield
18014
Tax ID # 959103
c/o New York City Police Department- 105th
Precinct
92-08 222nd Street
Queens, New York 11428

Dated: Brooklyn, New York
October 11, 2023

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS-----X
BRANDON K. BROWN, DONNELL LEDBETTER,
and JIMAR COLTER,

Index No.:

COMPLAINT

Plaintiffs,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
JASON QUINTANILLA- Shield # 6123, POLICE
OFFICER MICHAEL ZERBO-Shield # 18014, and
JOHN AND JANE DOES-Police Officers as yet
unidentified,

Defendants.

-----X
Plaintiffs, by their attorneys, RUBENSTEIN & RYNECKI, ESQS., complaining of the
defendants herein, upon information and belief, respectfully show to this Court, and allege as
follows:**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF BRANDON K. BROWN**

1. That at all times hereinafter mentioned, the plaintiff, BRANDON K. BROWN, was and still is a resident of the County of Kings, City and State of New York.
2. That all times hereinafter mentioned, the defendant, THE CITY OF NEW YORK, was and still is a municipal corporation, duly organized and existing pursuant to the laws of the State of New York.
3. That the defendant, THE CITY OF NEW YORK, maintains a police force known as the NEW YORK CITY POLICE DEPARTMENT.
4. That prior hereto on January 9, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff BRANDON K. BROWN, was held on February 17, 2023.

6. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the defendant, THE CITY OF NEW YORK, employed POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO- Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, as police officers, agents, servants and/or employees.

7. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff, BRANDON K. BROWN, was lawfully present at or about the premises known as 229-15 Merrick Boulevard, in the County of Queens, City and State of New York.

8. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff, BRANDON K. BROWN, was lawfully at the aforementioned location when he was approached and was assaulted and battered by the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO- Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified. The assault and battery consisted of being pushed and then shot with a Taser and/or other conductive energy device without justification when said device was too close of a distance to plaintiff's body causing injury. The plaintiff was also thrown to the ground, dragged and forcefully placed in handcuffs. The plaintiff was taken into police custody and brought by ambulance to Long Island Jewish Hospital for treatment of his injuries. Thereafter, the plaintiff was taken to the 105th Precinct and was held for a period of time until being transferred to Queens County Central Brooking where he remained until he was arraigned and released from custody at approximately 8:40 P.M., and issued baseless criminal charges.

9. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, plaintiff, BRANDON K. BROWN, was assaulted and battered by defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER

MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

10. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

11. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, BRANDON K. BROWN, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

12. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

13. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

14. By the reason of the foregoing, the plaintiff, BRANDON K. BROWN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF BRANDON K. BROWN**

15. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "14" inclusive with the same force and effect as if more fully set forth at length herein.

16. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, BRANDON K. BROWN.

17. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

18. By the reason of the foregoing, the plaintiff, BRANDON K. BROWN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF BRANDON K. BROWN**

19. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "18" inclusive with the same force and effect as if more fully set forth at length herein.

20. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, BRANDON K. BROWN.

21. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on

reasonable grounds and not founded upon an arrest warrant.

22. That as a result of the aforesaid false arrest and confinement, the plaintiff, BRANDON K. BROWN, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

23. By the reason of the foregoing, the plaintiff, BRANDON K. BROWN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF BRANDON K. BROWN**

24. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "23" inclusive with the same force and effect as if more fully set forth at length herein.

25. That on November 1, 2022 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

26. That the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

27. By the reason of the foregoing, the plaintiff, BRANDON K. BROWN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL
AND NEGLIGENT INFLICTION OF EMOTIONAL
DISTRESS ON BEHALF BRANDON K. BROWN**

28. The plaintiff repeats and realleges each and every allegation set forth above

numbered "1" through "27" inclusive with the same force and effect as if more fully set forth at length herein.

29. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

30. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, BRANDON K. BROWN.

31. That as a result of said intentional and negligent acts, the plaintiff, BRANDON K. BROWN, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

32. By reason of the foregoing, the plaintiff, BRANDON K. BROWN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF BRANDON K. BROWN**

33. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "32" inclusive with the same force and effect as if more fully set forth at length herein.

34. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

35. That on November 1, 2022, and at all times hereinafter mentioned and upon

information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield #6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, BRANDON K. BROWN.

36. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

37. By reason of the foregoing, plaintiff, BRANDON K. BROWN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF BRANDON K. BROWN**

38. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "37" inclusive with the same force and effect as if more fully set forth at length herein.

39. The defendant, THE CITY OF NEW YORK, through its policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, BRANDON K. BROWN.

40. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

41. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the

fabrication of evidence and perjury.

42. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

43. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

44. As a direct and proximate result of this unlawful conduct, the plaintiff, BRANDON K. BROWN, sustained the damages hereinbefore alleged.

**AS AND FOR AN EIGHTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF BRANDON K. BROWN**

45. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "44" inclusive with the same force and effect as if more fully set forth at length herein.

46. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

47. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet

unidentified, herein-above alleged.

48. By the reason of the foregoing, the plaintiff, BRANDON K. BROWN, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINTH CAUSE OF ACTION FOR ASSAULT
AND BATTERY ON BEHALF OF DONNELL LEDBETTER**

49. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "48" inclusive with the same force and effect as if more fully set forth at length herein.

50. That at all times hereinafter mentioned, the plaintiff, DONNELL LEDBETTER, was and still is a resident of the County, City and State of New York.

51. That prior hereto on January 9, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

52. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff DONNELL LEDBETTER, was held on February 17, 2023.

53. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DONNELL LEDBETTER, was lawfully present at or about the premises known as 229-15 Merrick Boulevard, in the County of Queens, City and State of New York.

54. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff, DONNELL LEDBETTER, was lawfully in a parked vehicle at the aforementioned location. The plaintiff was approached and was assaulted and battered by the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER

MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified. The assault and battery consisted of being grabbed out of the parked vehicle, pushed into the side of said vehicle, thrown to the ground, continually being struck by defendant police officers and forcefully placed in handcuffs. The plaintiff was taken into custody where he was taken to the 105th Precinct where he remained until being transferred to Queens Central Booking and remained until he was released and issued a baseless criminal charge at approximately 11:00 P.M.

55. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, plaintiff, DONNELL LEDBETTER, was assaulted and battered by defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

56. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

57. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, DONNELL LEDBETTER, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

58. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

59. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental

shock, mental anguish and psychological trauma and was otherwise injured.

60. By the reason of the foregoing, the plaintiff, DONNELL LEDBETTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF DONNELL LEDBETTER**

61. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "60" inclusive with the same force and effect as if more fully set forth at length herein.

62. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, DONNELL LEDBETTER.

63. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

64. By the reason of the foregoing, the plaintiff, DONNELL LEDBETTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN ELEVENTH CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF DONNELL LEDBETTER**

65. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "64" inclusive with the same force and effect as if more fully set forth at

length herein.

66. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield #6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, DONNELL LEDBETTER.

67. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

68. That as a result of the aforesaid false arrest and confinement, the plaintiff, BRANDON K. BROWN, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

69. By the reason of the foregoing, the plaintiff, DONNELL LEDBETTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWELFTH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF DONNELL LEDBETTER**

70. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "69" inclusive with the same force and effect as if more fully set forth at length herein.

71. That on November 1, 2022 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield #6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

72. That the defendants, POLICE OFFICER JASON QUINTANILLA- Shield #6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

73. By the reason of the foregoing, the plaintiff, DONNELL LEDBETTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF DONNELL LEDBETTER**

74. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "73" inclusive with the same force and effect as if more fully set forth at length herein.

75. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

76. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, DONNELL LEDBETTER.

77. That as a result of said intentional and negligent acts, the plaintiff, DONNELL LEDBETTER, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

78. By reason of the foregoing, the plaintiff, DONNELL LEDBETTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF DONNELL LEDBETTER**

79. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "78" inclusive with the same force and effect as if more fully set forth at length herein.

80. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield #6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

81. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield #6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, DONNELL LEDBETTER.

82. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

83. By reason of the foregoing, plaintiff, DONNELL LEDBETTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTEENTH CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF DONNELL LEDBETTER**

84. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "83" inclusive with the same force and effect as if more fully set forth at length herein.

85. The defendant, THE CITY OF NEW YORK, through its policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, DONNELL LEDBETTER.

86. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

87. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

88. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

89. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

90. As a direct and proximate result of this unlawful conduct, the plaintiff, DONNELL LEDBETTER, sustained the damages hereinbefore alleged.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF DONNELL LEDBETTER**

91. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "90" inclusive with the same force and effect as if more fully set forth at length herein.

92. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

93. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

94. By the reason of the foregoing, the plaintiff, DONNELL LEDBETTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION FOR
ASSAULT AND BATTERY ON BEHALF OF JIMAR COLTER**

95 The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "94" inclusive with the same force and effect as if more fully set forth at length herein.

96. That at all times hereinafter mentioned, the plaintiff, JIMAR COLTER, was and still is a resident of the County of Kings, City and State of New York.

97. That prior hereto on January 9, 2023, and within the time prescribed by law, a sworn Notice of Claim stating, among other things, the time when and place where the injuries and damages were sustained, together with plaintiff's demands for adjustment or payment thereof, was served and that thereafter THE CITY OF NEW YORK, refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof,

and that thereafter, and within the time provided by law, this action was commenced.

98. Pursuant to the General Municipal Law, the Statutory 50-H Hearing of the plaintiff JIMAR COLTER, was held on October 5, 2023.

99. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JIMAR COLTER, was lawfully present at or about the premises known as 229-15 Merrick Boulevard, in the County of Queens, City and State of New York.

100. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the plaintiff, JIMAR COLTER, was lawfully at the aforementioned location when he was approached and was assaulted and battered by the defendants, by the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified. The assault and battery consisted of being violently grabbed, thrown to the ground, punched, struck with feet and forcefully placed in handcuffs. The plaintiff was taken into police custody and brought to the 105th Precinct where he was held for a period time until his release and was issued with two (2) summons for baseless criminal charges for which he had to defend himself.

101. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, plaintiff, JIMAR COLTER, was assaulted and battered by defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, who were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK, at the aforesaid location.

102. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

103. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the defendants, POLICE OFFICER JASON QUINTANILLA- Shield #

6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, JIMAR COLTER, were acting within the scope of their employment with the defendant, THE CITY OF NEW YORK.

104. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

105. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

106. By the reason of the foregoing, the plaintiff, JIMAR COLTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR AN EIGHTEENTH CAUSE OF ACTION FOR NEGLIGENT
HIRING AND RETENTION ON BEHALF OF JIMAR COLTER**

107. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "106" inclusive with the same force and effect as if more fully set forth at length herein.

108. That the defendant, THE CITY OF NEW YORK, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their police officers, agents, servants, and employees and were negligent in the hiring, training and retention of the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, JIMAR COLTER.

109. That the defendant, THE CITY OF NEW YORK, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and

JOHN AND JANE DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

110. By the reason of the foregoing, the plaintiff, JIMAR COLTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A NINETEENTH CAUSE OF ACTION FOR
FALSE ARREST ON BEHALF OF JIMAR COLTER**

111. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "110" inclusive with the same force and effect as if more fully set forth at length herein.

112. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, were working within the scope of their employment and authority with the defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, JIMAR COLTER.

113. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

114. That as a result of the aforesaid false arrest and confinement, the plaintiff, JIMAR COLTER, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress, emotional distress and injuries.

115. By the reason of the foregoing, the plaintiff, JIMAR COLTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTIETH CAUSE OF ACTION FOR FALSE
IMPRISONMENT ON BEHALF OF JIMAR COLTER**

116. The plaintiff repeats and realleges each and every allegation set forth above numbered "1 through "115" inclusive with the same force and effect as if more fully set forth at length herein.

117. That on November 1, 2022 , and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield #6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

118. That the defendants, POLICE OFFICER JASON QUINTANILLA- Shield #6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

119. By the reason of the foregoing, the plaintiff, JIMAR COLTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION FOR
INTENTIONAL AND NEGLIGENT INFLICTION OF
EMOTIONAL DISTRESS ON BEHALF JIMAR COLTER**

120. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "119" inclusive with the same force and effect as if more fully set forth at length herein.

121. That the defendant, THE CITY OF NEW YORK, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

122. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, JIMAR COLTER.

123. That as a result of said intentional and negligent acts, the plaintiff, JIMAR COLTER, become sick, sore, lame and disabled, received severe and serious injuries in and about diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

124. By reason of the foregoing, the plaintiff, JIMAR COLTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-SECOND CAUSE OF ACTION FOR
MALICIOUS PROSECUTION ON BEHALF OF JIMAR COLTER**

125. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "124" inclusive with the same force and effect as if more fully set forth at length herein.

126. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield #6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

127. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, defendants, POLICE OFFICER JASON QUINTANILLA- Shield #6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff, JIMAR COLTER.

128. That on November 1, 2022, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to

reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

129. By reason of the foregoing, plaintiff, JIMAR COLTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A TWENTY-THIRD CAUSE OF ACTION FOR CIVIL
RIGHTS VIOLATION ON BEHALF OF JIMAR COLTER**

130. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "129" inclusive with the same force and effect as if more fully set forth at length herein.

131. The defendant, THE CITY OF NEW YORK, through its policies, practices and customs, directly caused the constitutional violation suffered by plaintiff, JIMAR COLTER.

132. The defendant, THE CITY OF NEW YORK, through its police department, has had and still has hiring practices that it knows will lead to the hiring of the police officers, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, lacking the intellectual capacity and moral fortitude to discharge their duties in accordance with the constitution and is indifferent to the consequences.

133. The defendant, THE CITY OF NEW YORK, through its police department, has *de facto quota* policy that encourages unlawful stops, unlawful searches, false arrests, the fabrication of evidence and perjury.

134. The defendant, THE CITY OF NEW YORK, at all relevant times, was, upon information and belief, aware that these individual defendants, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, routinely commit constitutional violations such as those at issue here and has failed to change its policies, practices and customs to stop this behavior.

135. The defendant, THE CITY OF NEW YORK, at all relevant times, was aware that these individual defendants, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, are unfit officers who have previously committed the acts alleged herein and/or have a propensity for unconstitutional conduct.

136. As a direct and proximate result of this unlawful conduct, the plaintiff, JIMAR COLTER, sustained the damages hereinbefore alleged.

**AS AND FOR A TWENTY-FOURTH CAUSE OF ACTION FOR
PUNITIVE DAMAGES ON BEHALF OF JIMAR COLTER**

137. The plaintiff repeats and realleges each and every allegation set forth above numbered "1" through "136" inclusive with the same force and effect as if more fully set forth at length herein.

138. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

139. That the defendant, THE CITY OF NEW YORK, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to POLICE OFFICER JASON QUINTANILLA- Shield # 6123, POLICE OFFICER MICHAEL ZERBO-Shield # 18014, and JOHN AND JANE DOES-Police Officers as yet unidentified, herein-above alleged.

140. By the reason of the foregoing, the plaintiff, JIMAR COLTER, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

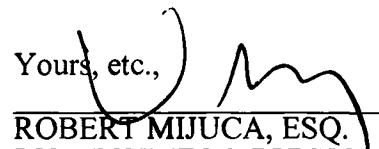
WHEREFORE, plaintiff, BRANDON K. BROWN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First** Cause of Action; plaintiff, BRANDON K. BROWN, demands judgment both

compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second** Cause of Action; plaintiff, BRANDON K. BROWN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third** Cause of Action; plaintiff, BRANDON K. BROWN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth** Cause of Action; plaintiff, BRANDON K. BROWN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth** Cause of Action; plaintiff, BRANDON K. BROWN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth** Cause of Action; plaintiff, BRANDON K. BROWN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh** Cause of Action; plaintiff, BRANDON K. BROWN, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth** Cause of Action; plaintiff, DONNELL LEDBETTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Ninth** Cause of Action; plaintiff, DONNELL LEDBETTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Tenth** Cause of Action; plaintiff, DONNELL LEDBETTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eleventh** Cause of Action; plaintiff, DONNELL LEDBETTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twelfth** Cause of Action; plaintiff, DONNELL LEDBETTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Thirteenth** Cause of Action; plaintiff, DONNELL LEDBETTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourteenth** Cause of Action; plaintiff, DONNELL LEDBETTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower

Courts on the **Fifteenth** Cause of Action; plaintiff, DONNELL LEDBETTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixteenth** Cause of Action; plaintiff, JIMAR COLTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventeenth** Cause of Action; plaintiff, JIMAR COLTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighteenth** Cause of Action; plaintiff, JIMAR COLTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Nineteenth** Cause of Action; plaintiff, JIMAR COLTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twentieth** Cause of Action; plaintiff, JIMAR COLTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-First** Cause of Action; plaintiff, JIMAR COLTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Second** Cause of Action; plaintiff, JIMAR COLTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Third** Cause of Action; plaintiff, JIMAR COLTER, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Twenty-Fourth** Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

DATED: Brooklyn, New York
October 11, 2023

Yours, etc.,


ROBERT MIJUCA, ESQ.
RUBENSTEIN & RYNECKI, ESQS.
Attorneys for Plaintiffs
BRANDON K. BROWN
DONNELL LEDBETTER
JIMAR COLTER
26 Court Street Suite 1200
Brooklyn, New York 11242
(718) 522-1020
File No.: 22BB11-01

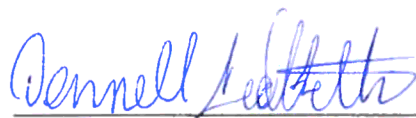
INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

DONNELL LEDBETTER, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.


DONNELL LEDBETTER

Sworn to before me this 16th
day of October 2023


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-20 2024

INDIVIDUAL VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF KINGS)

BRANDON K. BROWN, being duly sworn, deposes and says, that deponent is the plaintiff in the within action; that deponent has read the foregoing COMPLAINT and knows the contents hereof; that the same is true to deponent's own knowledge, except as to the matters therein stated to be alleged upon information and belief, and that as to those matters deponent believes them to be true.



BRANDON K. BROWN

Sworn to before me this 13th
day of October 2023


NOTARY PUBLIC

MAGDA MARIN-COLON
Notary Public, State of New York
No. 01MA6158891
Qualified in Richmond County
Commission Expires 1-16-2027